Standard Operating Procedure (SOP)

Country Specific Requirements Hong Kong

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QMS Area:	Quality
QMS Chapter:	4.9 Product Safety, Product Quality and Pharmacovigilance

Applicability

Bayer Level:	CH, PH

This document is electronically approved (signatures on the last page)

Distribution Sheet for Quality Regulations

Division/Business Unit ☒ PH ☒ CH

GBS Location
☐ Global Business Services Barcelona
☐ Global Business Services Costa Rica/Brazil
☐ Global Business Services Manila
☐ Global Business Services Gdansk
☐ Global Business Services India
☒ Global Business Services Dalian
☐ Global Business Services Germany

Region/ Country
☐ Global
☒ Specific Country: Hong Kong

Relevance for R&D QMS
☐ Affected
☐ Interface
☒ N/A

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1 Scope and Framework

1.1 Scope

Bayer Country Quality Units are accountable for a GMP compliant Product Technical Complaint Management within their respective countries. Within this responsibility they are supported by the respective Global Business Service in process steps like complaint initiation, forwarding for investigation to the RQU, and final verification including complaint sample management and reimbursement process.

This SOP defines clear guidance to the Global Business Services regarding all country specific requirements.

1.2 Framework

This SOP is based on principles and requirements outlined in SSC-PTC-SOP-001 “Manage Product Technical Complaint and Suspected Counterfeit Incidents in GBS”.

2 Abbreviations

AE	Adverse Event
CQH	Country Quality Head
CQU	Country Quality Unit
OTC products	Over-the-counter products
PTC	Product Technical Complaint
PV	Pharmacovigilance
RQU	Responsible Quality Unit
CBEC	Cross-Border E-Commerce
GBS	Global Business Service
GBS DLC	Global Business Service Dalian

3 Purpose & Set-Up

3.1 Purpose

Country Specific Requirements for Hong Kong are described in this SOP, regarding e.g. Data Privacy, Sample Handling Process, Reimbursement Process, Contacts, escalation rules.

During the processing of all PTCs by Bayer owned Global Business Service all country specific requirements are considered and followed besides the general complaint handling described in the SSC-PTC-SOP-001 “Manage Product Technical Complaint and Suspected Counterfeit Incidents in GBS”.

3.2 General guidance

The employees of the Global Business Service are following the SOP during complaint processing in Complaint database on behalf of the Country Quality Units.

3.3 Roles and responsibilities

PTC GBS team

- manages PTCs and suspected falsification and counterfeit on behalf of the CQUs of the legal entity which introduces product into the market (e.g. Marketing Authorization Holder, Distribution license holder)
- Enters PTCs, suspected falsification and counterfeit i and Usability Issues according to defined timelines, into the global complaint database in English language
- forwards all cases that are not PTCs back to the CQU or applicable function for further processing
- performs the initial intake of complaints after receipt and considering the information provided by the PV in case of an AE and/or a medical device (incl. Medical Device constituent of combination product) is involved
- informs the respective PV about all PTCs with a potential associated AE or LODE or potentially reportable medical device complaints, including the unique complaint database number and all relevant follow-up information (e.g. Batch number)
- informs the CQU about PTCs where local authorities are involved, about all potential falsification and counterfeits and any other cases described in the Country Specific SOPs
- checks completeness and accuracy of information (including the photo or video, if available from the complainant) before forwarding the cases to the RQU
- Initiates first contacts with the complainant within first 5 days of receipt of the complaint information to obtain follow-up information asks CQU for any support contacting the complainant if not possible/allowed by GBS (e.g. data privacy, non-hosted language)
- ensures translation of non-hosted languages
- forwards all cases to the respective RQU for further investigation and final assessment
- checks if a complaint sample is available and starts the process to retrieve the sample, documenting these efforts including the number of attempts requesting sample in detail in complaint database
- reviews the case for plausibility and closes the assessed complaint in complaint database
- support the process for reimbursement management
- responds to the complainant, for PTC+AEs in liaison with the PVCH and documents the response in the global complaint database or other cross-referenced system in cooperation with the CQU
- notifies the legal manufacturer of a device and where necessary, the manufacturer's authorized representative and the importer, if applicable.in case of any discussion or doubts contacts the CQH as the first line support

Country Quality Head (CQH) / Country Quality Unit (CQU)	- ensures the appropriate handling of PTCs, and suspected falsified and counterfeit incidents, reported in the respective country including the timely execution of the related activities, particularly for the entry of the cases into complaint database, forwarding them and for responding to the complainant - responds to the complainant, for PTC+AEs in liaison with the PVCH and documents the response in the global complaint database or other cross-referenced system in corporation with the Global Business Services - fulfills all obligations, e.g. PTC related reporting requirements defined by legislations or regulations - oversees and monitors the whole PTC process for products on market of their legal entity in case of delegation to GBS by controlling appropriate Key Performance Indicators according to GSOP 1372 “Perform Country Quality Management Review”.

4 Specific requirements regarding PTC handling

4.1 Country Specific Requirements listed by different topics

Description	Assigned Roles & Document Reference
4.1.1 General Information In Hong Kong the company operates under one legal entity with distributor status: Bayer Healthcare Ltd. Products are all imported from overseas and distributed to Hong Kong and Macau. The main office is in Hong Kong. There is also cross-border E-commerce (CBEC) business with further distribution of products to E-platforms in mainland China. The PTC from the CBEC business is managed by Hong Kong. GBS located in the city Dalian of China, which perform administrative part of PTC handling following roles and responsibilities.	
4.1.2 Contact list CQU HK: *hkquality@bayer.com* **Remark:** Current name and e-mail address of CQH and CQH deputy are found on the QINT SharePoint: *Country Quality List*	
4.1.3 Escalation Rules The CQH and the CQH deputy should be notified via generic e-mail address about any complaint case referring to at least one of the following situations: -For serious public health threats, potentially life-threatening cases, cases potentially requiring a FAR	GBS

Description	Assigned Roles & Document Reference
4.1.4 Pharmacovigilance cases If a complaint case is related to any type of Adverse Event, the Pharmacovigilance department has to be informed via the following e-mail address. - for non CBEC products: *drugsafety.hk@bayer.com* - for CBEC products: *AE_China@bayer.com* If Pharmacovigilance department receives information in same email loop, GBS PTC team does not need to inform again. If GBS PTC team received case should not be entered into Complaint database in accordance with the relevant Global SOP or Complaint Database User Guides, GBS PTC team reply with rational and CC CQU at the same time.	
4.1.5 Product Samples For HK domestic report, sample is collected where available and kept with reporter/distributor/warehouse for at least 3 months, depends on RQU physical sample request for sample delivery. Photo or video is collected instead of sample for other cases. In case RQU is requesting a physical sample, GBS responsible to clarify the sample status. The requirement will be sent through notification from Complaint database to CQU directly. If shipment creates additional risks (e.g., safety hazard, biohazard), shipment of samples should be substituted by photo or video. For CBEC products and Macau region report, generally sample will not be collected. Physical sample should be substituted by photo or video.	GBS
4.1.6 Statement letter **Acknowledgement Letter when a complaint comes in:** GBS sends acknowledgment letter as below for PTC cases: “Thanks for reporting the product quality- related complaint. The complaint is received and reported. Complaint ID is XXXXXX” **Response Letter after closing:** - For CBEC suspect counterfeit report, after investigation if no counterfeit observed, GBS shared response as below: “Thank you very much for reaching out to Bayer. After compare the details you have provided for batch number XXX, no discrepancy was found, no reason to suspect counterfeit.” “感谢您联系我们，经查看我们有生产过批号XXX的产品，产品详细信息与您提供的信息一致。” - For other type of cases, no action required from GBS.	GBS
4.1.7 RQU Contact list List with the respective RQU contact names are provided by the Divisional Quality Assurance function and available on the SharePoint:	GBS

Description	Assigned Roles & Document Reference
- PH: *PH RQU responsible list_HJ.xlsx* - CH: *IQMS_MASTER LIST COMPLAINT RESPONSIBILITIES.xlsx*	
4.1.8 List of Local Opportunities Products NA	
4.1.9 Data Privacy Requirements NA	
4.1.10 Gathering additional information (including obtaining translation) In case when the CQU receives a complaint firstly by a phone, the CQU sends received information to the GBS via e-mail as soon as possible because timeline starts when phone complaint is received by the CQU. Translation is not required for Hong Kong cases. If GBS PTC team needs to gather any additional information, GBS PTC team needs to contact case senders instead of complainants.	GBS CQU
4.1.11 Reimbursement and Replacement No action required from GBS.	GBS
4.1.12 Mandatory Spot Checks for Translations N/A	GBS
4.1.13 Exceptions and special cases For PTC related to outer or physical damage on packaging materials likely caused by local transportation happened in HK and Macau region, e.g. glass breakage, dent on outer carton. Such PTC case should be assigned to CQU in Complaint database for local RQU assessment.	
4.1.14 Others N/A	

5 Internal References

- SSC-PTC-SOP-001 “Manage Product Technical Complaints and Suspected Counterfeit Incidents in GBS”

6 External References

- N/A

History of changes

Version	Significant changes with respect to previous version	Effective date
1.0	New	2020-07-06
2.0	Add user information letter 49 in 4.1.12 Changing of 4.1.6 Changing of 4.1.13 Add annex 1	2020-08-31
3	# Country specific SOP template version up to 4.0, SSC-PTC-BP-002. V4.0, merged all information to current document from SSC-SOP-HK-003, version 2.0. Changed Document Label to SSC-PTC-SOP-HK-003 # Changed SSCDN to GBS in all session, changed SCD to GBS DLC # Update author and approvers for this SOP # Updated Abbreviations in session 2.0 # Remove User Information Letter 49 as Annex1 in session 7 # Revised the 4.1.1 General Information # Revised session 4.1.3 # Revised session 4.1.5 Product Samples # Revised session 4.1.6 Statement letter # Revised session 4.1.10 Gathering additional information (including obtain translation) # Updated session 4.1.12 Exceptions and special cases, remove User Information Letter 49 relevant part # Replace category I or II to classification High/Medium # Deleted the escalation rule # Updated the sample collection rule # Updated RQU list	2023-06-15
4	# Update Distribution Sheet # Update through all the document reflecting Global SOP-115 version 14.0 updates. # Replace “Dev@Com” with “Complaint Database” # Replace “Risk Category” to “Risk classification” # Replace session 3 roles and responsibility to align with GSOP 115, session 4.0, PTC GBS Team, Country Quality Head (CQH) / Country Quality Unit (CQU) # Updated CQH/CQU email address list in session 4.1.2 # Updated session 4.1.3 # Updated session 4.1.5, Replace “Dev@Com” with “Complaint Database” and other Dev@com relevant words # Updated session 4.1.7 replaced with new SharePoint link	See cover page

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